

Amendment No. 1 to SB1225

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1225*

House Bill No. 1354

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-11-611(c), is amended by designating the existing language as subdivision (1) and adding the following as a new subdivision (2):

(2)

(A) A victim of a human trafficking offense using force against a person who is committing or attempting to commit a human trafficking offense is presumed to have held a reasonable belief of imminent death or serious bodily injury to self, family, a member of the household, or a person visiting as an invited guest when that force is used.

(B) A person must prove the person's status as a victim of human trafficking by clear and convincing evidence. A person may provide clear and convincing evidence of the person's status as a victim of human trafficking through testimony.

SECTION 2. Tennessee Code Annotated, Section 39-11-611(d), is amended by deleting "subsection (c)" and substituting "subdivision (c)(1)".

SECTION 3. Tennessee Code Annotated, Section 39-11-611(a), is amended by adding the following as a new, appropriately designated subdivision:

() "Human trafficking offense" means the commission of an act that would constitute the criminal offense of:

(A) Trafficking a person for a commercial sex act under § 39-13-309;

(B) Patronizing prostitution under § 39-13-514 from a person who is younger than eighteen (18) years of age, has an intellectual disability, or is a law enforcement officer posing as a minor; or

(C) Promoting prostitution under § 39-13-515 of a person more than twelve (12) years of age but less than eighteen (18) years of age or a person with an intellectual disability.

SECTION 4. Tennessee Code Annotated, Section 40-11-153(a), is amended by deleting "or obstructing a highway" and substituting "or obstructing a highway or other passageway".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.